

Q. "The office of the President of India has evolved from being a nominal head to an institution of significant influence". Examine the constitutional provisions related to the President and analyze how the role has evolved over the years. 38 marks.

The president of India, as the highest constitutional authority and the head of state (Article 52), represents the unity and integrity of the nation. However, the office operates within the framework of a parliamentary system, where real executive power rests with the council of ministers.

POWERS OF PRESIDENT

EXECUTIVE	LEGISLATIVE	EMERGENCY	JUDICIAL
1. The president is the formal head of the executive branch of the govt. 2. Authority to appoint administrators of UTs.	1. <u>Article 87</u> - Addresses the parliament at the commencement of the 1st session of L.S. 2. Nominates 12 members of R.S.	1. <u>Article 352</u> - President may declare a national emergency. 2. Can invoke president's rule and financial emergency.	1. Appoint CJI and other judges of SC and HC. 2. <u>Article 143</u> gives the ability to consult the SC for advice on legal matters.

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CONSTITUTIONAL PROVISIONS

(A) Election and Term

Article 54 :- It is about election of the President of India

Article 55 :- President is being elected through indirect election by electoral college through system of proportional representation by means of single transferrable vote.

Article 56 :- Prescribed 5 years tenure.

(B) Qualification for Election as President

Article 58 :- Prescribes that person should be a citizen of India, 35 years age, qualified for election as a member of house of people

(C) Condition of office and oath of affirmation - Article 59 and 60

(D) Impeachment and time of holding election to fill vacancy - Article 61 and 62

(E) Powers of President

1. Executive power :- Article 74 :- President is the nominal executive and real power lies with the PM.

Article 78 :- can seek information from the PM.

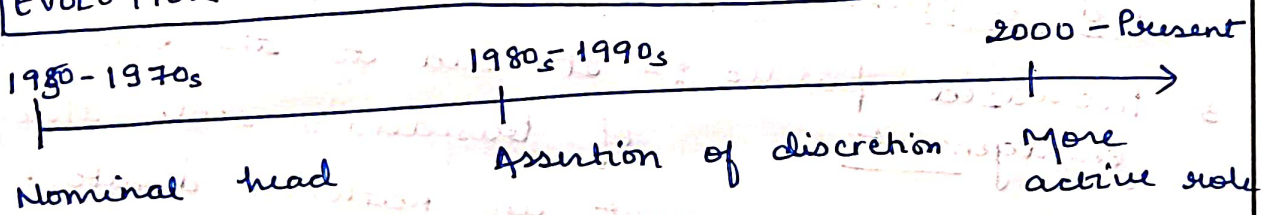
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2. Legislative provisions :- Article 85 :- Dissolve L.S
Article 123 :- Ordinance making power

3. Discretionary power :-
• Appointing the PM when no clear majority exists

• Refusing assent to unconstitutional bills -
Article 111.

EVOLUTION OF THE PRESIDENT'S ROLE



(A) PHASE 1 : NOMINAL HEAD (1950s - 1970s)

Role remained ceremonial, the 42nd CAA made it mandatory for the president to act on ministerial advice.

(B) PHASE 2 : ASSERTION OF DISCRETION

• Rise of coalition politics made the president's role in govt formation crucial.

• B. Shiva Rao a scholar argues that the President's role is evolving into a more advisory and constitutional guardian role.

(C) PHASE 3 : MORE ACTIVE ROLE

• APJ Abdul Kalam refused to sign the

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Office of Profit bill asserting independent judgement.
• Pranab Mukherjee played a stabilizing role during the 2014 political transition.

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KEY FACTORS

1. Coalition Politics :- After 1989, Presidents play a key role in selecting PMs in hung parliament.
2. Ordinance power and controversies :- Rise in ordinance rejection.
3. Increased public engagement :- It led to the evolution of President's role through increasing engagement in national debates.

Thus, as Granville Austin argues that while the President is a constitutional head, they serve as a "guardian of constitution" in times of crisis. While bound by parliamentary norms, their role in govt. formation, constitutional oversight has expanded. Clearer guidelines on discretionary power and can ensure that the President remains a guardian of democracy without overstepping parliamentary principles.